

Kunjesh Kumar Dubey v. State of U.P. — paper restoration on payment of arrears and mutation under clause 4.44

High Court of Judicature at Allahabad · Division Bench · 22 October 2019 · Writ - C No. 34139 of 2019 · Writ-C No. 34139 of 2019 · **Writ disposed of; restore on paper if the Rs 28,536 bill is paid within three weeks; mutation of the deceased father's connection to be considered under clause 4.44 within six weeks.**

HEADNOTE

On a writ seeking restoration on record of a paper-disconnected supply and mutation of a connection still standing in a deceased father's name, the Allahabad High Court directed paper restoration if the outstanding bill of Rs 28,536 dated 10 October 2019 was paid within three weeks. The application for change of name or transfer was left to be considered under clause 4.44 of the U.P. Electricity Supply Code, 2005, in accordance with law, within six weeks of production of a certified copy. Allegations of unauthorized use and the merits of the bill were not decided.

FACTUAL SUMMARY

The petitioner, appearing in person, complained of poor line and transformer maintenance in his locality, sought restoration on record of a connection against which a Rs 28,536 bill had been issued and deposit refused, and asked that the connection still standing in his deceased father's name be mutated to him. The licensee placed instructions of unauthorized use, a 10 October 2019 disconnection notice, and paper disconnection after three unpaid billing cycles, but said a new transformer had been installed and the petitioner was still receiving supply.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

mutation or transfer of connection after death of recorded consumer

HOLDING

Where a connection continues in the name of a deceased recorded consumer, an application for change of name or transfer is to be considered under the procedure in clause 4.44 of the U.P. Electricity Supply Code, 2005, in accordance with law, and is not decided on the writ petition itself. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS INVOLVED IN UNAUTHORIZED USE OF ELECTRICITY

The licensee alleged unauthorized use and a disconnection notice dated 10.10.2019; those allegations were not adjudicated. ¶ 1

NOT DECIDED — MERITS OF THE BILL OF RS 28,536

Payment of the bill was made a condition of paper restoration; the bill was neither quashed nor examined. ¶ 1

NOT DECIDED — ENTITLEMENT TO MUTATION ON THE MERITS

The change-of-name or transfer application was directed to be considered under clause 4.44 in accordance with law. ¶ 1